

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE CREATING SECTION 17.116.155, SPECIAL USE PERMIT: OIL AND GAS SUPPORT SERVICES, OF CHAPTER 17.116, DESIGN AND USE STANDARDS GENERALLY, OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 17.116.155, of Chapter 17.116, Design and Use Standards Generally, of Title 17, Zoning, of the Cheyenne City Code pertaining to Special Use Permit: Oil and Gas Support Services, is hereby created as follows:

**Chapter 17.116
DESIGN AND USE STANDARDS GENERALLY**

17.116.155 Special Use Permit: Oil and Gas Support Services.

A. An entity wishing to provide oil and gas support services, including land uses which provide support service for oil and gas drilling operations such as parking and storage of exploration, production or workover equipment, pipe and production equipment, equipment and storage yards for road and pipeline construction contractors and production unit setup, may request a Special Use Permit from the Governing Body to temporarily defer all or a portion of the development requirements in the Cheyenne City Code, including landscaping requirements, right of way improvements, parking lot surface paving, and connection to City water or sewer. A Special Use Permit is only available for property within the Heavy Industrial-HI Zone District.

B. A site approved for a Special Use Permit shall be subject to the following requirements:

1. No permanent facilities, including uses that would require restrooms, may be located on the site at the time of application or after approval.
2. Outdoor storage of all materials stored, or to be stored, shall be screened from the view of the adjacent public right-of-way and adjacent properties.
3. Screening shall be accomplished through the use of a solid fence or wall of sufficient height to fully screen all stored materials, or through the use of landscaping (including plant materials and/or berms) that provides year-round screening of a sufficient height to fully screen all stored materials, or through a combination of fencing, walls and landscaping. Any landscaping shall meet appropriate maintenance standards.
4. No maintenance activities shall be permitted.

C. The construction of any permanent facilities on a Special Use Permit site shall invalidate the Special Use Permit, and the applicant shall be required to improve the site according to City Code.

D. Applicants for a Special Use Permit for Oil and Gas Support Services shall submit the following for review and approval:

1. A site plan depicting all currently required standards and including traffic and drainage studies as required, including but not limited to landscaping, right-of-way improvements and screening. The site plan shall identify all site improvements that the applicant seeks to defer under the Special Use Permit.
2. An application for a Special Use Permit, Oil and Gas Support Services.
3. A bond or other financial security to guarantee restoration of the site to its original condition following the expiration of the Special Use Permit, if required by the City Engineer.

E. Approval Process.

1. *Pre-application Conference.* A pre-application conference is not required, but may be used to discuss planning and engineering issues, and specific application procedures and requirements for a formal application and coordination of the Special Use Permit request with the Site Plan Review Process.
2. *Staff Review.* Upon receipt of a formal application and site plan staff will conduct an internal review and may forward copies of the application to any pertinent external agencies for review and comment.
 - a. *Complete Application.* Within seven (7) days of submittal of the application, staff shall determine whether the application is complete according to official application requirements. Staff shall notify the applicant in writing of any deficiencies in incomplete applications giving directions and deadlines to cure deficiencies. Staff shall schedule complete applications for formal internal review subject to the criteria in this section.
 - b. *Posted Notice.* Prior to a recommendation, staff shall provide one sign for each road frontage indicating that there is a pending development application. The applicant shall ensure that this sign is posted on each road frontage on the property for at least seven (7) days prior to the recommendation. When the applicant has made all reasonable and good faith efforts to maintain posted notice, failure of this posted notice will not be grounds to invalidate the application.
 - c. *Staff Recommendation.* Upon review according to the criteria in this section, and between 7 and 30 days of the determination of a complete application, the Director shall take one of the following actions:
 - (1) Recommend Approval of the application and place on the next available City Council agenda; or
 - (2) Recommend Approval of the application with specific conditions or modifications and place on the next available City Council agenda;
 - (3) Recommend Denial of the application and state specific reasons for denial;
3. *City Council Review.* Upon recommendation of Staff, the application shall be scheduled for approval by the City Council at the next regular meeting. At this meeting City Council shall review the application subject to the criteria of this sections and:
 - a. Approve the Special Use Permit;
 - b. Approve the Special Use Permit with specific conditions or modifications. Conditions or modifications shall be:
 - (1) to better meet standards and review criteria; or
 - (2) to address situations created by or aggravated by the proposed application, and which conditions are roughly proportional to the impacts of the proposed development;
 - c. Deny the Special Use Permit.
4. *Effect of Decision.* The decision of the City Council is the final decision. Approval of the application shall be valid for up to 18 months, with a 6 month extension available by written request to the Director prior to the end of the initial period. In no event shall the Special Use Permit be valid for more than 2 years. Any application that has not established the Special Use within 1 year shall be void. At the conclusion of the Special Use Permit period, the applicant shall either implement the approved site plan or vacate the premises in accordance with the Special Use Permit.

E. Review Criteria. In reviewing and making a decision on the Special Use Permit, the City Council and Staff shall consider:

1. Whether the operating characteristics of the use are complimentary to the character of the surrounding area in terms of hours of operation, visible and audible impacts, and traffic patterns caused by the use;
2. The suitability of the subject property for the use, compared with the suitability of the subject property for other uses permitted by right in the zoning district;
3. Whether the specific application of the use to the site supports the general intent and applicability of the zoning district, and does not compromise the general intent and applicability of adjacent zoning districts;

- 4. The duration of the proposed Special Use relevant to the applicability requirements of this section;
- 5. Whether any additional site specific conditions associated with the application are sufficient to prevent any potential harm to the public health, safety or general welfare;
- 6. The review and recommendations of other reviewing bodies;
- 7. Whether the use is in conflict with other applicable City, State or Federal regulations;
- 8. The adequacy of infrastructure supporting the site.

Section 2. This ordinance shall be in full force and effect upon its passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK